

FEDERAL MARITIME COMMISSION

DOCKET NO. 22-25

**B & G FUTURES INC., *REVOCATION OF OCEAN TRANSPORTATION
INTERMEDIARY LICENSE NO. 026512NF***

BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE SUBMISSION OF MATERIALS SUPPORTING NOTICE OF REVOCATION

Pursuant to Rule 702 of Subpart X of the Federal Maritime Commission (Commission or FMC) Rules of Practice and Procedure, 46 C.F.R. § 502.702, the Bureau of Enforcement, Investigations, and Compliance (BEIC) submits copies of the Notice of Intent to Revoke (Notice) issued to B & G Futures (B & G or Respondent) by the Commission's Bureau of Certification and Licensing (BCL), as well as an appendix of materials supporting the Notice to the presiding Administrative Law Judge (ALJ) and the Respondent.

On August 24, 2022, BCL issued a Notice of Intent to Revoke the ocean transportation intermediary (OTI) license of B & G due to its failure to report changes in material fact to the Commission; its failure to respond to the Commission's lawful inquiry; making a materially false or misleading statement to the Commission in connection with its application for license and/or amendment to an existing license; and due to its lack of the character necessary to render ocean transportation intermediary services. On September 9, 2022, pursuant to the Commission's regulations at 46 C.F.R. §§ 515.17 and 502.702, B & G submitted a request for a hearing to the Office of the Secretary. On September 16, 2022, the Commission issued a Notice of Hearing Request and Assignment transmitting this matter to the Office of Administrative Law Judges. On September 22, 2022, the presiding ALJ issued a Notice and Initial Order (Notice) advising BEIC

of B & G's request for a hearing and BEIC's resulting obligation to submit to the ALJ and B & G a copy of BCL's Notice of Intent to Revoke and a copy of BCL's materials supporting the Notice, which are to be filed with the ALJ and served to B & G on this day October 24, 2022.

The ALJ's Notice also indicated BEIC may file a brief outlining its legal arguments, proposed findings of fact, and additional information. That filing would likewise be due on October 24, 2022. BEIC has considered whether to make such a filing, but respectfully declines the opportunity. BEIC will submit its reply to B & G's Response to BEIC's October 24th filing pursuant to Rule 704 of the Commission's Rules of Practice and Procedure at 46 C.F.R. § 502.704, within 20 days of B & G having filed its response.

Serena Lei-
Peng Tang

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Lei-Peng Tang
Date: 2022.10.24
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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon Respondent via email transmission this 24th day of October 2022.

Serena Lei-
Peng Tang

Digitally signed by Serena
Lei-Peng Tang
Date: 2022.10.24
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Serena L. Tang